

		of action. With respect to the inverse condemnation claim, defendants argue plaintiffs cannot establish substantial causation because (i) "a majority" of the damages plaintiffs attribute to the freeway construction project allegedly existed before construction began, and (ii) plaintiffs cannot establish the damages were substantially caused by an inherent risk presented by the deliberate design, construction or maintenance of the freeway project. Defendants also argue plaintiffs cannot recover for damages resulting from noise, dust, fumes, shocks or vibrations. Plaintiffs have demonstrated triable issues of material fact on the inverse condemnation claim. See, e.g., Plaintiffs' Opposing Separate Statement (ROA 222) Nos. 17, 18, 19, 20, 22, 33, 34, 37, 39, 41, 42. Among other evidence, plaintiffs presented the declaration of their civil and geotechnical engineering expert, Mohammad Joolazadeh, in which he opines that the freeway project "caused physical damage to 'each back yard wall'" at plaintiffs' property, that "among other things, the project construction slope facing the Subject Property places a surcharge upon the backyard wall which has adversely affected the structural integrity of the wall," and that the "construction of this slope has caused mixture of water and soil from the public improvement to enter into the backyards through the porous masonry block wall due to lack of installation of proper drainage control devices at the base of the slope." Joolazadeh Decl. (ROA 228) ¶ 6. Plaintiffs also presented defendants' responses to requests for admissions in which defendants admitted their "inspection of the Subject Property before this lawsuit found damage to the Subject Property substantially caused by the Project," and "the Project physically damaged each back yard wall at the Subject Property." Kehoe Decl. (ROA 228, 234) Ex. 11 (Response to RFA Nos. 2, 17) & Ex. 12 (Response to RFA Nos. 2, 17). In sum, plaintiffs have demonstrated material disputed factual issues in this factually intensive case. Defendants' unopposed Request for Judicial Notice (ROA 167) of Exhibits A, B, C, D and E, and Exhibit 6 is granted. Plaintiffs' Evidentiary Objections to the Jorgenson, Kahzeni and Thompson Declarations (ROA 230, 231, 232) are overruled. Defendants' Evidentiary Objections to the Joolazadeh and Vahid Declarations (ROA 244, 245) are overruled. Plaintiffs to give notice.
7	Hernandez v. Stanley G. Alexander, Inc. 2022-01291342	<u>Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$440,000 class action and PAGA settlement. Subject to plaintiff's submission of the declaration described below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff;

		\$110,000.00 for attorneys' fees; \$15,108.62 for litigation costs (after deducting unexplained \$750 "admin fee" and unsubstantiated \$2,900 "Berger Consulting Group" charge); \$7,750.00 for settlement administration costs; and \$20,000.00 total PAGA penalties (\$15,000.00 to the LWDA). Plaintiff is ordered to file and serve <u>by September 24, 2026</u> a declaration from the settlement administrator stating whether the administrator received any workweek disputes. If the administrator received any workweek disputes, the settlement administrator should explain the resolution of the dispute(s) and attach to the declaration copies of all documents relevant to the dispute(s). The final accounting hearing is scheduled for <u>September 16, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
8	Midnight v. Toyota Motor Sales, U.S.A., Inc. 2026-01546753	<u>Defendants Toyota Motor Sales, U.S.A., Inc. and Toyota Motor North America, Inc.'s Demurrer to Class Action Complaint</u> Defendants Toyota Motor Sales, U.S.A., Inc. and Toyota Motor North America, Inc. demur to the five causes of action in plaintiff Ryan Christopher Midnight's class action complaint. For the following reasons, defendants' demurrers are sustained in part and overruled in part. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318. A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. <i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05. Questions of fact cannot be decided on demurrer. <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556. Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. <i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 n.7. Plaintiff alleges claims individually and on behalf of a proposed class of consumers who paid out of pocket for the purchase, repair and/or replacement of batteries or other electric storage devices at a California Toyota dealership for a 2010 model year or later Toyota car that qualifies as a "Partial Zero Emissions Vehicle" (PZEV) or